

CHAPTER 9.

An Act to provide for the Branding of Barrels filled with Cured Herrings in England and Wales.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) In any place in which this section is in force barrels filled with cured white herrings may be presented to an officer appointed by the Board of Agriculture and Fisheries for the purpose of being branded or otherwise marked with a mark denoting the description of the herrings contained therein, and any barrel so presented shall, on payment of the prescribed fee and on compliance with the prescribed conditions, be marked accordingly, if, in the opinion of the officer, after inspection and examination, the construction, capacity, and condition of the barrel and the quality, curing, selection, and packing of the herrings are such as to satisfy the prescribed requirements.

Power to brand barrels filled with cured herrings.

(2) The Board of Agriculture and Fisheries may, by order published in such manner as the Board direct, declare this section to be in force in any place in England or Wales if it is shown to their satisfaction that there is a general desire on the part of the curers of herrings carrying on business in that place that such an order should be made.

The Board shall, at least two months before making any such order, give notice of their intention to make the order in such manner as the Board think calculated to give publicity thereto in the locality, and shall consider any objections or representations made to them in the interval.

(3) No barrel or half-barrel shall be branded unless it have a capacity, in the case of a barrel, of twenty-six and two-thirds imperial gallons, or, in the case of a half-barrel, of thirteen and a third imperial gallons.

(4) For the purposes of this Act, the expression "barrel" includes half-barrel when the context permits.

2.—(1) If any person forges or counterfeits any mark used for marking barrels under this Act, he shall be liable on summary conviction to a fine not exceeding fifty pounds.

Forgery of brands.

(2) If any person knowingly uses, sells, utters, disposes of, or exposes for sale any barrel (whether filled with herrings or not) with such forged or counterfeit mark thereon, he shall be liable on summary conviction to a fine not exceeding ten pounds. All barrels with any such forged or counterfeit mark thereon, and the contents thereof, shall be liable to be forfeited.

(3) For the purposes of this section, any person who removes a mark from any barrel and inserts the same into another

barrel shall be deemed to forge or counterfeit a mark within the meaning of this section.

Penalty on
use of old
barrels bearing
brand.

3. If any person fraudulently uses any old barrel bearing a mark affixed under this Act for the purpose of packing herrings or other fish therein, he shall be liable on summary conviction to a fine not exceeding ten pounds, and the barrel and the contents thereof shall be liable to be forfeited.

Provision for
Northumber-
land.
54 & 55 Vict.
c. 28.

4. If section one of this Act is put in force in any part of the area to which the Branding of Herrings (Northumberland) Act, 1891, applies, the powers of the Fishery Board for Scotland and of their officers under that Act shall cease to be exerciseable in that part so far as concerns the branding or otherwise dealing with barrels of herrings.

Regulations.

5.—(1) For the purposes of this Act, the Board of Agriculture and Fisheries may make regulations with respect to any matter which under this Act may be prescribed, subject, as respects fees, to the consent of the Treasury, and for prescribing—

- (a) the manner in which barrels are to be presented for the purpose of being marked ;
- (b) the manner in which barrels are to be marked and the nature of the marks ;
- (c) the manner in which the inspection and examination of barrels and their contents are to be conducted ;

and generally for carrying this Act into effect.

(2) If any person, in any declaration required under such regulations, makes any statement which to his knowledge is false in any material particular, he shall be liable on summary conviction to a fine not exceeding ten pounds.

Legal pro-
ceedings.

6.—(1) All barrels and the contents thereof forfeited under this Act shall be sold or otherwise disposed of as a court of summary jurisdiction may direct.

(2) Where a person is convicted under any section of this Act and the court by which he is convicted is of opinion that the offence was committed with intent to defraud, he shall be liable, in addition to or in lieu of any fine, to imprisonment with or without hard labour for a term not exceeding two months.

(3) In England, Wales, or Ireland any person who feels himself aggrieved by a conviction or order of a court of summary jurisdiction under this Act may appeal to quarter sessions in accordance with the Summary Jurisdiction Acts.

Short title.

7. This Act may be cited as the *Herring Fishery (Branding) Act, 1913.*